

Directive Principles and Fundamental Duties - The Foundation Track

Chapter F1.4 — From Zero: The Chapter That Explains Why Labour Law and Social Security Exist At All

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NOTE · HOW TO USE THIS DOCUMENT

This is the bridge chapter of the whole manual. Part IV of the Constitution contains Articles 39, 41, 42, 43 and 43A, and those five Articles are the constitutional instruction under which Parliament enacted every labour and social security statute you will spend your career administering. Read as a list of Article numbers, Part IV is dull. Read as the source code of your job, it is the most useful chapter in Module 1 after Fundamental Rights. It also carries the Fundamental Rights versus Directive Principles conflict, one of the most examined story-lines in polity, and the eleven Fundamental Duties. Study time 4 hours across five sessions.

This is the FOUNDATION layer - it teaches from first principles. The COMPACT treatment of this material sits inside the Module 1 Chapters 1.4 to 1.13 Completion Volume and is your revision text for the final six weeks.

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0. Why This Chapter Is the Hinge of the Whole Manual

Every candidate learns Part IV as a list. You need to learn it as an instruction manual that Parliament actually followed.

Ask the question a beginner should ask: **why does India have an Employees' Provident Fund Organisation at all?** Not "what does it do" - why does it exist?

The answer is not in the EPF & MP Act. The Act is only the instrument. The answer is in **Part IV of the Constitution**, which told the State to secure provision for old age, sickness and disablement, a living wage, humane conditions of work and maternity relief. Parliament was under a constitutional direction to act, and the statutes are what acting looked like.

STUDY SESSION · CHAPTER F1.4 - THE FIVE SESSIONS

- 1 **Session 1** - What a Directive Principle is, why it is non-justiciable, and where the idea came from (Section 1)
- 2 **Session 2** - The three-fold classification, and the complete list of Articles (Section 2)
- 3 **Session 3 - The five Articles that created your job**, and the DPSP-to-statute map (Section 3). The most important session in the chapter
- 4 **Session 4** - Fundamental Rights versus Directive Principles: the conflict, the cases, Article 31C (Section 4)
- 5 **Session 5** - Fundamental Duties (Section 5)

Then **40 graded questions** in Section 6. Budget **six sessions**, about **three days** at two hours a day.

1. Session 1 - What a Directive Principle Is ★★★★★

1.1 The definition, and the one Article that defines the whole Part

Part IV, Articles **36 to 51**, contains the **Directive Principles of State Policy**. They are **instructions to the State** - to the legislature and the executive, at both Union and State level - on the kind of society the Constitution wants built.

The defining provision is **Article 37**, and you should be able to quote its effect:

- 1 The Directive Principles are **not enforceable by any court**
- 2 But they are nonetheless **fundamental in the governance of the country**
- 3 And it is the **duty of the State to apply them** in making laws

JARGON DECODER · NON-JUSTICIABLE DOES NOT MEAN UNIMPORTANT - THE DISTINCTION BEGINNERS GET BACKWARDS

Non-justiciable means **you cannot sue on it**. No citizen can go to court and obtain an order compelling Parliament to enact a living-wage law under Article 43.

It does **not** mean:

- that the provision is a mere pious wish
- that it has no legal significance
- that the State may ignore it

Article 37 itself calls the Principles "**fundamental in the governance of the country**". They bind the State **politically and morally**, they are used by courts to **interpret** ambiguous statutes and to give content to Fundamental Rights, and - decisively - **Parliament has in fact legislated on almost all of them**. The proof that non-justiciable obligations get obeyed is the entire body of labour and social security law.

FROM YOUR OWN WORLD · JUSTICIABLE VERSUS NON-JUSTICIABLE, IN TERMS YOU ALREADY USE

Think of the difference between a **loan covenant** and a **board-approved policy target**.

If a borrower breaches a covenant, you can enforce it - recall the loan, take action. That is **justiciable**.

If your bank's board sets a target of opening a certain number of rural branches, no customer can sue the bank for missing it. But it is not meaningless: it is a genuine institutional obligation, it drives budgets and appraisals, and it is the standard by which management is judged. That is **non-justiciable**.

Part IV works the second way. No one can sue on Article 43, but Article 43 is why the Minimum Wages Act exists.

1.2 Where the idea came from

- 1 Borrowed from the **Constitution of Ireland**, which had in turn taken the idea from the Spanish Constitution
- 2 The immediate Indian ancestor is the **Objectives Resolution** moved by **Nehru** in December 1946, and behind that the **Karachi Resolution of the Congress, 1931**, which set out a programme of fundamental rights **and** economic and social policy
- 3 The framers' reasoning: India in 1950 lacked the **resources** to guarantee social and economic rights immediately as enforceable claims. A right to work or to social security, made justiciable at once, would have been a promise the State could not keep. So they were placed as **directions** to be fulfilled progressively as means allowed

WHY THIS EXISTS · THE KARACHI RESOLUTION LINK, AND WHY AN INTERVIEW BOARD WOULD ENJOY IT

The **Karachi Resolution of 1931** is the direct ancestor of Articles 39 to 43. It demanded a living wage, limited working hours, protection of women workers, a prohibition on child labour, protection against old age, sickness and unemployment, and the right of workers to form unions. Read that list and then read Articles 39, 41, 42 and 43. They are substantially the same programme, written twenty years apart.

So when someone asks why the Indian Constitution - unusually among constitutions of its era - contains such detailed labour and social-security directives, the answer is historical: **the national movement had already committed itself to them in 1931**, and the Constituent Assembly was honouring a promise the freedom struggle had made to Indian workers. That is a genuinely good answer, and it is covered again in the Foundation chapter on the labour movement.

CHECK YOURSELF · SESSION 1

- 1 Which Part and which Articles contain the Directive Principles?
- 2 State the three things Article 37 says
- 3 Explain "non-justiciable" and give three things it does **not** mean
- 4 From which country's constitution were the Directive Principles borrowed?
- 5 What was the Karachi Resolution of 1931, and what is its relationship to Articles 39 to 43?
- 6 Why did the framers make them non-justiciable rather than enforceable?

2. Session 2 - The Classification and the Complete List ★★★★★☆

The Constitution itself contains no classification. Commentators group the Principles into three families, and the exam uses those groupings.

2.1 The three-fold classification

Family	Articles	Character
Socialist	38, 39, 39A, 41, 42, 43, 43A, 47	Aimed at social and economic justice - a welfare State. This is the family that contains all your labour Articles
Gandhian	40, 43, 43B, 46, 47, 48	Reflects the Gandhian programme - village panchayats, cottage industry, co-operatives, upliftment of weaker sections, prohibition, cattle protection
Liberal-Intellectual	44, 45, 48, 48A, 49, 50, 51	Reflects liberal ideology - uniform civil code, early childhood education, environment, monuments, separation of judiciary from executive, international peace

The standard three-fold grouping - know which family each Article belongs to

Note that **Articles 43, 47 and 48 appear in two families**, because different limbs of the same Article serve different ideologies. Article 43 directs both a **living wage** (socialist) and the promotion of **cottage industries** (Gandhian). That overlap is a legitimate exam point, not an error.

2.2 The complete list

Learn the numbers, but learn them grouped by subject rather than in numerical order.

Article	Subject	What it directs
36	Definition	"State" has the same meaning as in Part III - so Article 12 applies here too
37	Application	Non-justiciable , but fundamental in governance; duty of the State to apply
38	Welfare State	Promote the welfare of the people; secure a social order with justice - social, economic, political. 38(2) , added by the 44th Amendment 1978 , directs minimising inequalities of income, status, facilities and opportunities
39 ★★★★★	Principles of policy	Six clauses (a) to (f). See Section 3 - the most important Article in Part IV for you
39A	Legal aid	Equal justice and free legal aid . Added by the 42nd Amendment, 1976
40	Panchayats	Organise village panchayats as units of self-government. The ancestor of the 73rd Amendment
41 ★★★★★	Right to work and assistance	Right to work, to education and to public assistance in cases of unemployment, old age, sickness and disablement . Your Article
42 ★★★★★	Conditions of work	Just and humane conditions of work, and maternity relief

Article	Subject	What it directs
43 ★★★★★	Living wage	Living wage , conditions of work ensuring a decent standard of life, and social and cultural opportunities; promotion of cottage industries
43A	Worker participation	Participation of workers in management of undertakings. Added by the 42nd Amendment, 1976
43B	Co-operatives	Promotion of co-operative societies - voluntary formation, autonomous functioning, democratic control, professional management. Added by the 97th Amendment, 2011
44	Uniform Civil Code	Secure a uniform civil code throughout India
45	Early childhood	Early childhood care and education for children below six . Substituted by the 86th Amendment, 2002 , which moved the 6-to-14 duty to Article 21A
46	Weaker sections	Promote educational and economic interests of SCs, STs and other weaker sections
47	Public health	Raise the level of nutrition and public health ; prohibit intoxicating drinks and drugs injurious to health
48	Agriculture	Organise agriculture and animal husbandry on modern lines; prohibit slaughter of cows, calves and other milch and draught cattle
48A	Environment	Protect and improve the environment , and safeguard forests and wildlife. Added by the 42nd Amendment, 1976
49	Monuments	Protect monuments and places of national importance
50	Separation	Separate the judiciary from the executive in the public services of the State
51	International peace	Promote international peace and security , respect for international law and treaty obligations, and settlement of disputes by arbitration

Part IV in full - the starred ones are the ones that matter to your career

MEMORY TECHNIQUE · THE AMENDMENTS THAT ADDED DIRECTIVE PRINCIPLES - ASKED AS A CLUSTER

Only four amendments have touched Part IV by addition or substitution. Learn them as a set.

- 42nd Amendment, 1976** added **THREE**: **39A** legal aid, **43A** worker participation in management, **48A** environment
- 44th Amendment, 1978** added **38(2)** - minimising inequalities of income and status
- 86th Amendment, 2002** substituted **Article 45** - it now covers **below six**, because 6-to-14 moved to Article 21A
- 97th Amendment, 2011** added **43B** - promotion of co-operative societies

The 42nd Amendment trio is the most examined. Remember them as "**lawyer, worker, environment**" - legal aid, participation in management, protection of the environment.

COMMON UPSC TRAP · THREE NUMBER TRAPS IN PART IV

- 1 **Article 40 is village panchayats. Article 44 is the uniform civil code. Article 45 is early childhood education. Article 46 is weaker sections.** These four consecutive numbers are constantly swapped in options
- 2 **Article 48 is cattle and agriculture. Article 48A is the environment.** One letter apart, entirely different subjects, and 48A came in 1976 while 48 was original
- 3 **Article 50 is separation of the judiciary from the executive.** Candidates often place this in Part V with the judiciary. It is a **Directive Principle**, and therefore **non-justiciable** - which is why the separation is incomplete in practice

CHECK YOURSELF · SESSION 2

- 1 Name the three families and give three Articles in each
- 2 Which Articles appear in more than one family, and why?
- 3 Which three Directive Principles did the 42nd Amendment add? Give the mnemonic
- 4 Which amendment added 38(2), which substituted Article 45, and which added 43B?
- 5 Place these correctly: 40, 44, 45, 46, 48, 48A, 50
- 6 Which Article directs separation of the judiciary from the executive, and in which Part does it sit?

3. Session 3 - The Five Articles That Created Your Job ★★★★★

If you read nothing else in this chapter, read this section. It is the constitutional origin of Modules 2 and 3, and it is the best interview material in the manual.

3.1 Article 39 - the six clauses, in full

Article 39 directs the State to secure:

- 1 **39(a)** - that citizens, men and women equally, have the right to an **adequate means of livelihood**
- 2 **39(b)** - that the **ownership and control of the material resources** of the community are so distributed as best to **subserve the common good**
- 3 **39(c)** - that the economic system does not result in the **concentration of wealth and means of production** to the common detriment
- 4 **39(d)** - **equal pay for equal work** for both men and women
- 5 **39(e)** - that the **health and strength of workers**, men and women, and the **tender age of children**, are not abused, and that citizens are **not forced by economic necessity** into avocations unsuited to their age or strength
- 6 **39(f)** - that **children** are given opportunities to develop in a healthy manner and in conditions of freedom and dignity, and that **childhood and youth are protected against exploitation** and against moral and material abandonment

MUST MASTER · READ 39(E) AGAIN - IT IS THE CONSTITUTIONAL THEORY OF LABOUR LAW IN ONE CLAUSE

"...that citizens are **not forced by economic necessity** to enter avocations unsuited to their age or strength."

That phrase - **forced by economic necessity** - is the exact idea the Supreme Court used in the **Asiad Workers case** you met in Chapter F1.3, when it held that paying below the minimum wage amounts to **forced labour under Article 23**.

So the two Parts talk to each other. **Article 39(e)** in Part IV supplies the **policy premise** that economic compulsion is a real constraint on freedom; **Article 23** in Part III makes it a **justiciable wrong**. This is why the courts insist that Parts III and IV must be read together rather than as rivals - a point that becomes the whole subject of Session 4.

3.2 Articles 41, 42, 43 and 43A - and the statutes they produced

Article	What it directs	The statutes that carried it out
41	Right to work, education, and public assistance in unemployment, old age, sickness and disablement	EPF & MP Act 1952 (old age, via EPF and EPS 1995) · ESI Act 1948 (sickness, disablement, unemployment allowance) · Employees' Compensation Act 1923 (disablement) · EDLI 1976 (death) · the Atal Pension Yojana and PM-SYM (old age, unorganised)
42	Just and humane conditions of work , and maternity relief	Factories Act 1948 · Mines Act 1952 · Maternity Benefit Act 1961 · now the OSH Code 2020 and the Social Security Code 2020
43	Living wage , decent standard of life, social and cultural opportunities; cottage industries	Minimum Wages Act 1948 · Payment of Wages Act 1936 · Payment of Bonus Act 1965 · now the Code on Wages 2019
43A	Participation of workers in management	Works Committees under the Industrial Disputes Act 1947 · Grievance Redressal Committees · now the IR Code 2020
39(d)	Equal pay for equal work	Equal Remuneration Act 1976 · now absorbed into the Code on Wages 2019
39(e) and (f)	Health of workers; children not abused; protection of childhood	Child and Adolescent Labour Act 1986 , amended 2016 · Factories Act 1948 · and constitutionally reinforced by Article 24

The DPSP-to-statute map - the single most useful table in Module 1 for an APFC candidate

MUST MASTER · THE COMPLETE CHAIN - LEARN TO SAY THIS IN UNDER SIXTY SECONDS

This is the answer to "why does your job exist?", and it is the strongest single answer you can give an interview board.

- 1 The **Karachi Resolution, 1931** committed the national movement to a living wage, limited hours, protection of women and children, and provision against old age, sickness and unemployment
- 2 Those commitments became **Articles 39, 41, 42 and 43** in **Part IV - directions**, not enforceable rights, because the State in 1950 could not fund them immediately
- 3 Because Part IV is **non-justiciable**, no citizen could compel Parliament to act. Parliament acted anyway - which is the practical proof that Article 37's phrase "fundamental in the governance of the country" means something
- 4 Parliament's **legislative competence** came from **Entry 23** (social security and social insurance) and **Entry 24** (welfare of labour, including **provident funds**) of the **Concurrent List**, in the **Seventh Schedule**, read with **Article 246**
- 5 Among the statutes so enacted was the **Employees' Provident Funds and Miscellaneous Provisions Act, 1952**, an **enabling** Act which framed **three schemes** - **EPF, EPS 1995** and **EDLI 1976**
- 6 That Act created the **EPFO**, which - being a statutory body under the pervasive control of the Government - is an **"other authority"** and therefore **"State"** under **Article 12**
- 7 Consequently an **APFC** exercising the **quasi-judicial** power under **Section 7A** is bound by **Article 14** (reasoned, consistent, non-arbitrary orders) and by **Article 21** as read in **Maneka Gandhi** (fair, just and reasonable procedure - notice and hearing)
- 8 And an aggrieved employer's remedy is a writ petition in the **High Court under Article 226**, typically seeking **certiorari** to quash the order

Part IV told the State what to do. Part III controls how you do it. That one sentence is the relationship between the two Parts, and it is also a complete description of your professional position.

CHECK YOURSELF · SESSION 3

- 1 Recite the six clauses of Article 39 by subject
- 2 Which clause contains the phrase "forced by economic necessity", and which Fundamental Right did the courts link it to?
- 3 For each of Articles 41, 42 and 43, name two statutes that carried it out
- 4 Which Article directs equal pay for equal work, and which Act gave it effect?
- 5 Which Article directs worker participation in management, and which amendment added it?
- 6 Recite the full chain from the Karachi Resolution to Article 226 in under a minute

4. Session 4 - Fundamental Rights versus Directive Principles ★★★★★

A classic conflict with a clean narrative shape, and it resolves into a principle you can state in one line.

4.1 Why there is a conflict at all

Part III restrains the State. Part IV instructs the State to act. Sooner or later the instruction will require action that the restraint forbids.

The historical flashpoint was **land reform and property**. Article 39(b) and (c) directed redistribution of material resources; the right to property in the original Part III protected existing owners. Something had to give.

4.2 The story, in sequence

- 1 **Champakam Dorairajan (1951)** - the first collision. The Court held that where a Directive Principle conflicts with a Fundamental Right, the **Fundamental Right prevails**, and Directive Principles must conform to Part III. Parliament's response was the **1st Amendment, 1951**, which inserted **Article 15(4)** to enable reservation - so the very first amendment to the Constitution was made to protect a Directive Principle from a Fundamental Right
- 2 **Golaknath (1967)** - reinforced the supremacy of Part III by holding Fundamental Rights unamendable, which made it still harder to implement Part IV
- 3 **Kesavananda Bharati (1973)** - Parliament may amend Fundamental Rights, subject to the basic structure. Part IV could now be implemented, within limits
- 4 **The 25th Amendment, 1971** inserted **Article 31C**: a law giving effect to **Article 39(b) or (c)** cannot be challenged for violating **Article 14 or Article 19**
- 5 **The 42nd Amendment, 1976** tried to extend Article 31C to laws implementing **any** Directive Principle - in effect giving the whole of Part IV primacy over Articles 14 and 19
- 6 **Minerva Mills (1980)** - struck that extension down. The Court held that the **balance between Fundamental Rights and Directive Principles is itself part of the basic structure**. Neither Part may be sacrificed to the other. So **Article 31C survives only in its original, narrower form**, protecting laws under 39(b) and (c)

MUST MASTER · THE ONE-LINE ANSWER, AND THE POSITION TODAY

Neither Part is superior. The harmony and balance between Part III and Part IV is itself part of the basic structure of the Constitution.

The operating position:

- 1 Directive Principles **cannot override** Fundamental Rights
- 2 But courts **interpret** Fundamental Rights **in the light of** Directive Principles wherever possible, so as to give effect to both
- 3 **Article 31C** gives limited primacy to laws implementing **Article 39(b) and (c) only**, protecting them against Articles 14 and 19
- 4 The attempt by the 42nd Amendment to extend that protection to all Directive Principles was **struck down** in *Minerva Mills*

WORKED EXAMPLE · HARMONIOUS CONSTRUCTION AT WORK - AND WHY IT MATTERS TO YOU

Watch how the courts use Part IV to expand Part III rather than to defeat it.

- 1 **Article 21** says "life and personal liberty". **Article 41** directs public assistance in unemployment, old age, sickness and disablement, and **Article 39(a)** speaks of an adequate means of livelihood. Reading them together, the courts derived a **right to livelihood** within Article 21
- 2 **Article 21** plus **Article 47** (public health) and **Article 48A** (environment) produced the **right to a clean environment** and the **right to health**
- 3 **Article 21** plus **Article 45** produced the **right to education** even before Article 21A was inserted in 2002, in *Unni Krishnan and Mohini Jain*
- 4 **Article 23** plus **Article 43** produced the holding that below-minimum-wage labour is **forced labour**

Notice the pattern: the **Directive Principle supplies the content**, and the **Fundamental Right supplies the enforceability**. That is harmonious construction, and it is how a non-justiciable direction ends up being enforced in practice after all.

CHECK YOURSELF · SESSION 4

- 1 Why is a conflict between Part III and Part IV inevitable? What was the historical flashpoint?
- 2 What did *Champakam Dorairajan* hold, and what amendment followed it?
- 3 What does Article 31C protect, and which amendment inserted it?
- 4 What did the 42nd Amendment try to do to Article 31C, and which case stopped it?
- 5 State the position today in one line
- 6 Give three examples of a Fundamental Right expanded by reading a Directive Principle into it

5. Session 5 - Fundamental Duties ★★★★★☆

The shortest Part of the Constitution, and almost pure recall. Learn the origin, the count, and the two that were added later.

5.1 Origin and character

- 1 Recommended by the **Swaran Singh Committee, 1976**, which suggested **eight** duties
- 2 Added by the **42nd Amendment, 1976** as a new **Part IV-A**, containing a single Article - **Article 51A** - with **ten** duties. So Parliament added **more** than the Committee recommended, which is a favourite question
- 3 An **eleventh** duty was added by the **86th Amendment, 2002**
- 4 Inspired by the Constitution of the **USSR**
- 5 They are **non-justiciable**, like Directive Principles - no court can enforce them directly
- 6 They apply to **citizens only**, not to all persons
- 7 The **Verma Committee, 1999** examined implementation and identified existing legal provisions through which several duties are in fact enforced - for example laws on the National Flag, protection of monuments, and wildlife

5.2 The eleven duties

Clause	Duty
(a)	To abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem
(b)	To cherish and follow the noble ideals of the freedom struggle
(c)	To uphold and protect the sovereignty, unity and integrity of India
(d)	To defend the country and render national service when called upon
(e)	To promote harmony and the spirit of common brotherhood transcending religious, linguistic, regional and sectional diversities, and to renounce practices derogatory to the dignity of women
(f)	To value and preserve the rich heritage of the composite culture
(g)	To protect and improve the natural environment including forests, lakes, rivers and wildlife, and to have compassion for living creatures
(h)	To develop scientific temper, humanism and the spirit of inquiry and reform
(i)	To safeguard public property and to abjure violence
(j)	To strive towards excellence in all spheres of individual and collective activity
(k)	Added by the 86th Amendment, 2002 - a parent or guardian to provide opportunities for education to a child between six and fourteen

Article 51A - it shall be the duty of every citizen of India

MEMORY TECHNIQUE · HOLDING ELEVEN DUTIES WITHOUT BRUTE MEMORISATION

Group them by **what they are loyal to**.

- 1 **Loyalty to the State** - (a) Constitution, flag, anthem · (c) sovereignty and integrity · (d) defend the country
- 2 **Loyalty to history** - (b) ideals of the freedom struggle · (f) composite culture
- 3 **Loyalty to fellow citizens** - (e) harmony and the dignity of women · (i) public property and non-violence
- 4 **Loyalty to the future** - (g) environment · (h) scientific temper · (j) excellence · (k) a child's education

The two most examined details: **(k) is the eleventh, added in 2002**, and **(g) includes compassion for living creatures**, which candidates forget is part of the environmental duty.

COMMON UPSC TRAP · THREE TRAPS ON FUNDAMENTAL DUTIES

- 1 **Swaran Singh recommended eight; the 42nd Amendment inserted ten.** Do not answer "eight duties were added"
- 2 **The 86th Amendment, 2002 did THREE things** - inserted **Article 21A** (right to education), **substituted Article 45** (below six), and added **Article 51A(k)** (parental duty). A question may test any one of the three, or ask which of them the amendment did **not** do
- 3 **Fundamental Duties apply to CITIZENS only**, and are **non-justiciable**. But note the qualification: although not directly enforceable, they may be **enforced through ordinary legislation** that Parliament enacts, which is what the Verma Committee identified

CHECK YOURSELF · SESSION 5

- 1 Which committee recommended Fundamental Duties, how many did it recommend, and how many were inserted?
- 2 Which Part and Article contain them? Which country inspired them?
- 3 Which duty was added in 2002, by which amendment, and what two other changes did that amendment make?
- 4 Are Fundamental Duties justiciable? Do they apply to aliens?
- 5 Recite the eleven duties using the four loyalty groups
- 6 What did the Verma Committee, 1999 do?

6. Graded Practice - 40 Questions ★★★★★

6.1 Level 1 - Recognition

Q. 1. The Directive Principles of State Policy are contained in

(a) Part III, Articles 12 to 35 (b) Part IV, Articles 36 to 51 (c) Part IV-A, Article 51A (d) Part V, Articles 52 to 151

Q. 2. Which Article declares that the Directive Principles shall not be enforceable by any court?

(a) Article 36 (b) Article 37 (c) Article 38 (d) Article 51

Q. 3. The Directive Principles were borrowed from the Constitution of

(a) the USSR (b) Ireland (c) the United States (d) Canada

Q. 4. Which Article directs the State to secure equal pay for equal work for men and women?

(a) Article 39(a) (b) Article 39(d) (c) Article 41 (d) Article 43

Q. 5. Public assistance in cases of unemployment, old age, sickness and disablement is directed by

(a) Article 39 (b) Article 41 (c) Article 42 (d) Article 47

Q. 6. Just and humane conditions of work and maternity relief are directed by

(a) Article 41 (b) Article 42 (c) Article 43 (d) Article 43A

Q. 7. The direction to secure a living wage for workers is contained in

(a) Article 39 (b) Article 41 (c) Article 43 (d) Article 47

Q. 8. Participation of workers in the management of undertakings is directed by

(a) Article 43 (b) Article 43A (c) Article 43B (d) Article 44

Q. 9. Which Article directs the organisation of village panchayats?

(a) Article 40 (b) Article 44 (c) Article 45 (d) Article 46

Q. 10. The uniform civil code is directed by

(a) Article 40 (b) Article 43 (c) Article 44 (d) Article 45

Q. 11. Protection and improvement of the environment is directed by

(a) Article 47 (b) Article 48 (c) Article 48A (d) Article 49

Q. 12. Separation of the judiciary from the executive is directed by

(a) Article 49 (b) Article 50 (c) Article 51 (d) Article 235

Q. 13. Fundamental Duties were added to the Constitution by

(a) the 24th Amendment, 1971 (b) the 42nd Amendment, 1976 (c) the 44th Amendment, 1978 (d) the 86th Amendment, 2002

Q. 14. Fundamental Duties are contained in

(a) Part III (b) Part IV (c) Part IV-A (d) Part V

Q. 15. How many Fundamental Duties are there at present?

(a) Nine (b) Ten (c) Eleven (d) Twelve

6.2 Level 2 - Understanding**Q. 16. "Non-justiciable" in relation to Directive Principles means that they**

(a) have no legal or constitutional significance (b) cannot be enforced by a court, though the State has a duty to apply them (c) may be ignored by the State (d) apply only to the States and not to the Union

Q. 17. Which one of the following best explains why the Directive Principles were made non-justiciable?

(a) The framers did not consider them important (b) The State lacked the resources in 1950 to guarantee social and economic rights as immediately enforceable claims (c) They were borrowed and therefore unsuited to India (d) They conflicted with the Preamble

Q. 18. The Directive Principles belonging to the socialist family include

(a) Articles 44, 45 and 50 (b) Articles 38, 39, 41, 42 and 43 (c) Articles 40, 46 and 48 (d) Articles 48A, 49 and 51

Q. 19. Which three Directive Principles were added by the 42nd Amendment, 1976?

(a) 38(2), 43B and 45 (b) 39A, 43A and 48A (c) 39A, 43B and 48A (d) 40, 43A and 48A

Q. 20. Article 43B, promotion of co-operative societies, was added by

(a) the 42nd Amendment, 1976 (b) the 44th Amendment, 1978 (c) the 86th Amendment, 2002 (d) the 97th Amendment, 2011

Q. 21. The phrase "not forced by economic necessity to enter avocations unsuited to their age or strength" appears in

(a) Article 23 (b) Article 39(e) (c) Article 41 (d) Article 43

Q. 22. Which Fundamental Right did the courts link to the idea of economic compulsion found in Article 39(e), when holding that payment below the minimum wage is forced labour?

(a) Article 19 (b) Article 21 (c) Article 23 (d) Article 24

Q. 23. In *Champakam Dorairajan* (1951) the Supreme Court held that

(a) Directive Principles prevail over Fundamental Rights (b) Fundamental Rights prevail over Directive Principles (c) the two are of equal force (d) Parliament may not amend either

Q. 24. Article 31C protects laws giving effect to

(a) all Directive Principles (b) Article 39(b) and (c) only (c) Articles 41 to 43 only (d) Part IV-A

Q. 25. The attempt to extend Article 31C to all Directive Principles was struck down in

(a) *Kesavananda Bharati* (b) *Golaknath* (c) *Minerva Mills* (d) *Waman Rao*

Q. 26. The present position on the relationship between Part III and Part IV is that

(a) Part III always prevails (b) Part IV always prevails (c) the balance between the two is part of the basic structure, and neither may be sacrificed to the other (d) the matter is unresolved

Q. 27. The Swaran Singh Committee recommended how many Fundamental Duties, and how many were actually inserted?

(a) Ten recommended, ten inserted (b) Eight recommended, ten inserted (c) Ten recommended, eleven inserted (d) Eleven recommended, ten inserted

Q. 28. The 86th Amendment, 2002 did not

(a) insert Article 21A (b) substitute Article 45 (c) add Article 51A(k) (d) add Article 43B

Q. 29. Fundamental Duties are

(a) justiciable and available to all persons (b) non-justiciable and applicable to citizens only (c) justiciable and applicable to citizens only (d) non-justiciable and applicable to all persons

Q. 30. Which duty includes having compassion for living creatures?

(a) 51A(e) (b) 51A(f) (c) 51A(g) (d) 51A(h)

6.3 Level 3 - Recruitment Test standard

Q. 31. Which one of the following statements is not correct?

(a) Article 37 declares the Directive Principles to be fundamental in the governance of the country (b) Directive Principles are enforceable by the courts (c) Directive Principles were borrowed from Ireland (d) It is the duty of the State to apply the Directive Principles in making laws

Q. 32. Consider the following statements:

- 1 Article 41 directs the State to make provision for public assistance in cases of unemployment, old age, sickness and disablement.
- 2 The Employees' State Insurance Act, 1948 and the EPF & MP Act, 1952 are among the statutes that give effect to that direction.
- 3 Because Article 41 is non-justiciable, a citizen may sue the State to compel the enactment of such legislation.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 33. Match List-I with List-II and select the correct answer using the code below:

List-I (Article)	List-II (Statute giving effect)
A. Article 39(d)	1. Maternity Benefit Act, 1961
B. Article 42	2. Minimum Wages Act, 1948
C. Article 43	3. Equal Remuneration Act, 1976
D. Article 43A	4. Works Committees under the Industrial Disputes Act, 1947

(a) A-3 B-1 C-2 D-4 (b) A-2 B-1 C-3 D-4 (c) A-3 B-2 C-1 D-4 (d) A-1 B-3 C-2 D-4

Q. 34. Which of the following pairs is not correctly matched?

(a) Article 39A - equal justice and free legal aid (b) Article 43A - participation of workers in management (c) Article 48A - protection of monuments (d) Article 51 - promotion of international peace and security

Q. 35. Arrange the following in correct chronological sequence:

- 1 Insertion of Article 31C
- 2 *Champakam Dorairajan*
- 3 *Minerva Mills*
- 4 Insertion of Article 43B

(a) 2, 1, 3, 4 (b) 1, 2, 3, 4 (c) 2, 3, 1, 4 (d) 2, 1, 4, 3

Q. 36. Consider the following statements about the relationship between Parts III and IV:

- 1 The courts interpret Fundamental Rights in the light of Directive Principles so as to give effect to both.
- 2 The right to livelihood was read into Article 21 with the aid of Articles 39(a) and 41.
- 3 A Directive Principle may override a Fundamental Right where the two conflict.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 37. Which one of the following is not a Directive Principle?

(a) To secure a uniform civil code (b) To organise village panchayats (c) To abide by the Constitution and respect the National Flag (d) To separate the judiciary from the executive

Q. 38. An APFC is asked at interview why India has a statutory provident fund at all. Which one of the following is the most complete constitutional answer?

(a) Because Article 43 directs a living wage (b) Because Part IV, particularly Article 41, directed the State to provide assistance in old age, sickness and disablement, and Parliament legislated under Entries 23 and 24 of the Concurrent List to give effect to it (c) Because Article 12 defines EPFO as State (d) Because Article 23 prohibits forced labour

Q. 39. Consider the following statements:

- 1 Article 45 originally directed free and compulsory education for all children until the age of fourteen.
- 2 After the 86th Amendment, Article 45 directs early childhood care and education for children below six.
- 3 The duty of a parent to provide education to a child between six and fourteen is a Fundamental Duty.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 40. Which one of the following statements about Article 31C is correct?

(a) It protects laws implementing any Directive Principle against Articles 14 and 19 (b) It was inserted by the 42nd Amendment, 1976 (c) It protects laws implementing Article 39(b) and (c) against Articles 14 and 19, the wider version having been struck down (d) It was struck down in its entirety in *Minerva Mills*

7. Answers and Explanations

7.1 Level 1

Q	Ans	Explanation
1	b	Part IV, Articles 36 to 51. Part IV-A is Fundamental Duties
2	b	Article 37 - non-enforceable, yet fundamental in governance, with a duty on the State to apply them
3	b	Ireland , which took the idea from Spain. The USSR gave Fundamental Duties
4	b	Article 39(d) , given effect by the Equal Remuneration Act 1976, now in the Code on Wages 2019
5	b	Article 41 - your Article. Unemployment, old age, sickness, disablement
6	b	Article 42 - just and humane conditions of work, and maternity relief
7	c	Article 43 - living wage, decent standard of life, and cottage industries
8	b	Article 43A , added by the 42nd Amendment 1976. 43B is co-operatives
9	a	Article 40 - the ancestor of the 73rd Amendment
10	c	Article 44
11	c	Article 48A , added by the 42nd Amendment 1976. Article 48 is agriculture and cattle
12	b	Article 50 - and note it is a Directive Principle , hence non-justiciable
13	b	42nd Amendment, 1976
14	c	Part IV-A , containing the single Article 51A
15	c	Eleven - ten in 1976 plus one in 2002

7.2 Level 2

Q	Ans	Explanation
16	b	Not enforceable by a court, but Article 37 imposes a duty on the State to apply them and calls them fundamental in governance
17	b	A question of resources . An immediately enforceable right to work or social security would have been a promise the 1950 State could not fund
18	b	The socialist family is 38, 39, 39A, 41, 42, 43, 43A, 47 - and it is the family containing all the labour Articles
19	b	39A legal aid, 43A worker participation, 48A environment. Mnemonic: lawyer, worker, environment
20	d	97th Amendment, 2011
21	b	Article 39(e) - the constitutional theory behind the whole of labour law
22	c	Article 23 - forced labour, in the <i>Asiad Workers</i> case. 39(e) supplies the premise, Article 23 supplies the enforceability
23	b	Fundamental Rights prevail . Parliament's response was the 1st Amendment, 1951 , inserting Article 15(4)
24	b	Article 39(b) and (c) only - the wider version was struck down
25	c	Minerva Mills (1980) - the balance between the two Parts is part of the basic structure

Q	Ans	Explanation
26	c	Neither is superior; the balance is basic structure
27	b	Eight recommended, ten inserted. Parliament added more than the Committee proposed
28	d	Article 43B was the 97th Amendment, 2011. The 86th did the other three
29	b	Non-justiciable , and for citizens only
30	c	51A(g) - the environmental duty expressly includes compassion for living creatures

7.3 Level 3

Q	Ans	Explanation
31	b	Directive Principles are not enforceable - that is the whole point of Article 37. The other three statements are correct
32	a	1 and 2 only. Statement 3 contradicts itself: because Article 41 is non-justiciable, a citizen cannot sue to compel legislation. That Parliament legislated anyway is the practical significance of Article 37
33	a	A-3 39(d) equal pay - Equal Remuneration Act 1976; B-1 Art 42 maternity relief - Maternity Benefit Act 1961; C-2 Art 43 living wage - Minimum Wages Act 1948; D-4 Art 43A participation - Works Committees
34	c	Article 48A is the ENVIRONMENT. Protection of monuments is Article 49 . A one-letter, one-number trap
35	a	2, 1, 3, 4 - <i>Champakam Dorairajan</i> 1951 , Article 31C by the 25th Amendment 1971 , <i>Minerva Mills</i> 1980 , Article 43B by the 97th Amendment 2011
36	a	1 and 2 only. Statement 3 is wrong - a Directive Principle may not override a Fundamental Right; the courts harmonise instead
37	c	Abiding by the Constitution and respecting the National Flag is Fundamental Duty 51A(a) , in Part IV-A - not a Directive Principle. The other three are Articles 44, 40 and 50
38	b	The complete chain runs from the Part IV direction through legislative competence under Entries 23 and 24 to the statute. (a) is true but incomplete and concerns wages rather than provident funds; (c) explains EPFO's constitutional status , not the reason for its existence ; (d) is unrelated
39	d	All three correct. Article 45 originally covered up to fourteen; the 86th Amendment moved that to Article 21A and left Article 45 with below-six; and 51A(k) is the parental Fundamental Duty
40	c	Inserted by the 25th Amendment, 1971, and it survives in its original narrower form covering 39(b) and (c) . It was not struck down entirely - only the 42nd Amendment's extension to all Directive Principles was

8. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F1.4 - THE BRIDGE TO MODULES 2 AND 3

PART IV Articles **36 to 51** · **Art 37** = **not enforceable by any court**, but **fundamental in the governance** of the country, and a **duty of the State to apply** · from **IRELAND** · ancestor = **Objectives Resolution 1946** and the **KARACHI RESOLUTION 1931**

WHY NON-JUSTICIABLE the 1950 State could not **fund** immediately enforceable social and economic rights - so they became directions to be fulfilled progressively

THREE FAMILIES Socialist **38, 39, 39A, 41, 42, 43, 43A, 47** (all your labour Articles) · **Gandhian 40, 43, 43B, 46, 47, 48** · **Liberal 44, 45, 48, 48A, 49, 50, 51** · **43, 47, 48 appear twice**

ART 39 SIX CLAUSES (a) adequate means of **livelihood** (b) material resources to **subserve common good** (c) no **concentration of wealth** (d) **EQUAL PAY FOR EQUAL WORK** (e) health and strength of workers, tender age of children, **not forced by economic necessity** (f) children develop in **freedom and dignity**, protected from exploitation

YOUR FIVE ARTICLES 41 unemployment, old age, sickness, disablement → **EPF 1952, ESI 1948, EC 1923, EDLI 1976** · **42** just and humane conditions + **maternity relief** → **Factories 1948, Mines 1952, Maternity Benefit 1961** · **43 living wage** + cottage industries → **Minimum Wages 1948, Payment of Wages 1936, Bonus 1965** · **43A worker participation** → **Works Committees** · **39(d) equal pay** → **Equal Remuneration 1976**

KEY NUMBERS 40 panchayats · **44** uniform civil code · **45** below six · **46** weaker sections · **47** nutrition, public health, prohibition · **48** agriculture and cattle · **48A ENVIRONMENT** · **49 MONUMENTS** · **50** separation of judiciary · **51** international peace and **arbitration**

AMENDMENTS TO PART IV 42nd 1976 added THREE - **39A legal aid, 43A worker participation, 48A environment** (*lawyer, worker, environment*) · **44th 1978 added 38(2)** inequalities of income and status · **86th 2002 substituted Art 45** (below six) · **97th 2011 added 43B** co-operatives

FR vs DPSP STORY *Champakam Dorairajan 1951* FR prevail → **1st Amdt 1951** inserts **15(4)** → *Golaknath 1967* → *Kesavananda 1973* → **Art 31C by 25th Amdt 1971** protects laws under **39(b) and (c)** from **Art 14 and 19** → **42nd Amdt 1976** tries to extend to ALL DPSPs → **Minerva Mills 1980 STRIKES THAT DOWN** · **THE BALANCE BETWEEN PART III AND PART IV IS ITSELF BASIC STRUCTURE**

HARMONIOUS CONSTRUCTION DPSP supplies the **content**, FR supplies the **enforceability** · **21 + 39(a) + 41 = right to livelihood** · **21 + 47 + 48A = clean environment and health** · **21 + 45 = education** before 21A · **23 + 43 = below minimum wage is forced labour**

FUNDAMENTAL DUTIES Swaran Singh Committee 1976 recommended **EIGHT** · **42nd Amdt 1976 inserted TEN** · **86th Amdt 2002 added the ELEVENTH, 51A(k)** parent to educate child **6 to 14** · **Part IV-A, Article 51A** · from the **USSR** · **non-justiciable, citizens only** · **Verma Committee 1999** on implementation · **(g) includes compassion for living creatures**

86th AMENDMENT DID THREE THINGS inserted **21A** · substituted **45** · added **51A(k)**

9. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F1.4 - THE CHAIN THAT EXPLAINS YOUR JOB

ART 37 not enforceable · **but fundamental in governance** · duty of the State to apply
41 = old age, sickness, disablement, unemployment → **EPF, ESI, EC Act** **42 = humane conditions + maternity relief** → **Factories, Maternity Benefit** **43 = LIVING WAGE** → **Minimum Wages, Payment of Wages, Bonus** **43A = worker participation** → **Works Committees** **39(d) = equal pay** → **Equal Remuneration Act**
39(e) "not forced by economic necessity" → the premise the Court used in **Asiad Workers** to make below-minimum-wage pay **forced labour under Art 23**
42nd AMDT TRIO **39A lawyer** · **43A worker** · **48A environment**
48A = ENVIRONMENT · **49 = MONUMENTS** (do not swap)
31C protects **39(b) and (c)** only · **25th Amdt 1971** · wider version killed by **Minerva Mills 1980**
THE ONE-LINE ANSWER neither Part is superior - **the BALANCE between Part III and Part IV is itself basic structure**
DUTIES **8 recommended** · **10 inserted** · **11 now** · **Part IV-A** · **Art 51A** · **USSR** · non-justiciable · **citizens only**
THE SIXTY-SECOND CHAIN Karachi 1931 → **Art 39/41/42/43** (Part IV, non-justiciable) → Parliament legislates under **Concurrent Entries 23 and 24** → **EPF & MP Act 1952**, an enabling Act framing **three schemes** → creates **EPFO** → EPFO is "**State**" under **Art 12** → so an APFC's **Section 7A** power is controlled by **Art 14** (reasons, consistency) and **Art 21** (*Maneka Gandhi* - fair hearing) → employer's remedy is **Art 226 certiorari**
THE SENTENCE TO REMEMBER Part IV told the State **WHAT to do**. Part III controls **HOW you do it**.

ACTION · NEXT IN THE FOUNDATION TRACK

Module 1 continues later with **F1.5 to F1.13** - the Union Executive, Parliament, the Judiciary, State government, Centre-State relations and Emergency, local government, and the constitutional and statutory bodies.

But the build now moves to **Module 2 FOUNDATION - Labour Laws and Industrial Relations**, because that is the largest knowledge block in the paper and the subject furthest from your banking background. You are ready for it: you now know the **ladder of legal instruments** (F1.1), the **Concurrent List entries** (F1.1), that **EPFO is "State"** and what **natural justice** requires (F1.3), and - from this chapter - **which Directive Principle produced which statute**. Labour law will read as a system rather than a list.